

IN THE COURT OF COMMON PLEAS OF MERCER COUNTY, PENNSYLVANIA

**Plaintiff:** Amanda Marie Hansen f/k/a Amanda Marie Clark

**Defendant:** Tyler Peter Wayne Titus

**Case No:** 2023-1512

FILED IN MERCER  
COUNTY  
2026 JUN 29 PM 3:14  
TANYA WILLIAMS  
PROTHONOTARY

**DEFENDANT'S EMERGENCY MOTION FOR RECONSIDERATION AND  
INFORMANDAM CONSCIENTIAM**

Defendant, *pro se*, respectfully moves this Honorable Court for Reconsideration of the Protection From Abuse (PFA) Extension Order entered on May 28<sup>th</sup>, 2026. Defendant's Motion is timely filed within the strict jurisdictional 30-day window mandated by 42 Pa.C.S. § 5505.

Defendant states as follows

**I. Manifest Injustice and Lack of In Personam Jurisdiction**

1. The Extension Order was entered *in absentia* and *ex parte* at a hearing where the Defendant was not present due to a total lack of standard procedur(e)(a) service(s).
2. The Plaintiff completely failed to serve the underlying Petition to Extend upon the Defendant. Proceeding to a final hearing without verification of service of the process' constitutes a fatal defect in *in personam* jurisdiction and violates

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1. The Extension Order was entered *in absentia* and *ex parte* at a hearing where the Defendant was not present due to a total lack of standard procedur(e)(al) service(s).
2. The Plaintiff completely failed to serve the underlying Petition to Extend upon the Defendant. Proceeding to a final hearing without verification of service of the process' constitutes a fatal defect in *in personam* jurisdiction and violates

fundamental Constitutional Due Process.

3. The Defendant was subjected to severe material prejudice because the Court did not deny the Plaintiffs Extension Petition for lack of Certificate of Service, let alone lack of Actual Service(s) and as the Court knows, the Court Notice completely omitted(d)(s) the underlying Petition/ Attachments, if any.

Preparing a meaningful defense was/ still is a structural impossibility, particularly because the Plaintiff maintains a pattern of avoiding service(s), necessitating continuous skip-tracing effort(s). Moreover, the Plaintiff (and Plaintiff's Attorney(s)) has (/ have) consistently failed to clarify Plaintiff's legal representation across 'related dockets'. The Defendant is left in a perpetual state of uncertainty regarding who actively represents, or advocates for, the Plaintiff, creating an unfair procedural ambush and an insurmountable barrier to proper legal coordination.

## **II. Ultra Vires Inclusion of the Minor Child**

4. The initial, final 3-year PFA order explicitly **excluded** the parties' minor child, following a deliberate adjudication by a Prior Presiding Judge.

5. Under the PFA Act, **23 Pa.C.S. § 6108(e)**, a court's authority during extension proceedings is strictly limited to extending restrictions contained within an *existing* order.

6. Expanding an extension order to inject an entirely new protected party who was previously excluded is an *ultra vires* act (..beyond the court's lawful power). It unconstitutionally strips the Defendant of parental rights without an independent evidentiary foundation.

7. This structural overreach acts as a *de facto* custody modification, improperly bypassing the ~~active~~ custody docket and creating a(more) severe, immediate, and unjust disruption to the parent(s)-child dynamic.

## **PRAYER FOR RELIEF**

**WHEREFORE**, the Defendant (pro se.. *still*...) respectfully requests that this Honorable Court grant this Emergency Motion, \*immediately excise the minor child from the May 28<sup>th</sup>, 2026 Order to prevent or reduce ongoing irreparable and or reparable harm, and \*schedule an expedited hearing where before such Hearing the Plaintiff is ordered to make proper legal service of Her Petition/ any Attachments, to the Plaintiff, at least ten days ahead of the Hearing, \*and also where the Plaintiff is ordered to file legal Certificate of Service with the Prothonotary, \*and (almost) finally, where the May 28<sup>th</sup> transcript of

the *in absentia* and *ex parte* Extension Hearing shall be struck on the record in preparation for a hearing not *in absentia* or *ex parte* \* or in the alternative \* where the Court denies the Plaintiff's former unserved Extension Petition and Vacates the May 29<sup>th</sup> Order.

## VERIFICATION

I, , hereby state that I am the Defendant in the within matter and that the facts set forth in the foregoing Emergency Motion for Reconsideration are true and correct to the best of my knowledge, information, and belief.

I understand that false statements herein are made subject to the penalties of **18 Pa.C.S. § 4904** relating to unsworn falsification to authorities.

Respectfully submitted,

Date: June 29<sup>th</sup>, 2026

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Tyler Titus, Defendant Pro Se

**IN THE COURT OF COMMON PLEAS OF MERCER COUNTY, PENNSYLVANIA**

**Plaintiff:** Amanda Marie Hansen f/k/a Amanda Marie Clark

**Defendant:** Tyler Peter Wayne Titus

**Case No:** 2023-1512

**EMERGENCY ORDER**

**AND NOW**, this \_\_\_\_\_ day of \_\_\_\_\_, 2026, upon consideration of the Defendant's Emergency Motion for Reconsideration, it is hereby **ORDERED, ADJUDGED, and DECREED** that:

1. The Plaintiff's Unserved Petition to Extend is **DENIED and DISMISSED** due to a fatal defect in service of process', failure to file a Certificate of Service, and a lack of *in personam* jurisdiction.
3. The PFA Extension Order entered against the Defendant on May 28, 2026, is hereby **VACATED** and rendered null and void.

**BY THE COURT:**

P.J. \_\_\_\_\_

**IN THE COURT OF COMMON PLEAS OF MERCER COUNTY, PENNSYLVANIA**

**Plaintiff:** Amanda Marie Hansen f/k/a Amanda Marie Clark

**Defendant:** Tyler Peter Wayne Titus

**Case No:** 2023-1512

**EMERGENCY ORDER**

**AND NOW**, this \_\_\_\_\_ day of \_\_\_\_\_, 2026, upon consideration of the Defendant's Emergency Motion for Reconsideration, it is hereby **ORDERED, ADJUDGED, and DECREED** that:

To preserve fundamental constitutional due process and prevent a manifest injustice:

The Protection From Abuse (PFA) Extension Order entered on May 28, 2026, is immediately **MODIFIED** to completely **EXCLUDE** the parties' minor child.

A new, de novo evidentiary hearing on the Plaintiff's underlying Petition to Extend Plaintiff's PFA is scheduled for the \_\_\_\_\_ day of \_\_\_\_\_, 2026, at :  
\_\_M. in Courtroom No. \_\_\_\_\_ of the Mercer County Courthouse, Mercer, Pennsylvania.

The Plaintiff is ORDERED to make service of Their complete Petition to Extend, and all attachments, upon the Defendant at least ten (10) days prior to the new hearing date.

The Plaintiff is further ORDERED to file an official, legal Certificate of Service with the Mercer County Prothonotary.

The Transcript of the in absentia and ex parte Extension Hearing held on May 28, 2026, is hereby STRUCK on the record in preparation for the upcoming adversarial hearing.

**BY THE COURT:**

P.J. \_\_\_\_\_



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IN THE COURT OF COMMON PLEAS OF Mercer COUNTY, PENNSYLVANIA  
CIVIL ACTION

Amanda Marie Hansen f/k/a Amanda Marie Clark  
Plaintiff

No. 2023-1572

vs.  
Tyler Peter Wayne Titus  
Defendant

TANYA WILLIAMS  
PROTHONOTARY

2026 JUN 29 PM 3:19

FILED IN MERCER  
COUNTY

CERTIFICATE OF SERVICE  
OF LEGAL PAPERS OTHER THAN ORIGINAL PROCESS  
Pursuant to Pa.R.C.P. 440

I, Tyler Titus, ( ) Plaintiff ( ☒ ) Defendant in this matter,  
certify that a copy of Emergency Pet. 4. Records  
filed on Jun 29 '26 was sent to Amanda Hansen ( ☒ ) Plaintiff ( ) Defendant at:  
thru Minor Child

By

first class mail on

other:

Tyler Titus  
Print Name

[Signature]  
Signature

Jun 29 '26  
Date

**END DOC**